THE STATE
versus
WILLIAM SMOKO

HIGH COURT OF ZIMBABWE
MAWADZE DJP & MUREMBA J
HARARE; 6 October 2025

Criminal Review

MUREMBA J:

1. In criminal proceedings, the delicate balance between safeguarding the rights of the accused and ensuring justice for complainants demands a rigorous and principled approach to evidence. The case of *State* v *Banana* 2000 (1) ZLR 607 (S), reaffirmed a foundational tenet in sexual offence trials: that a complaint made voluntarily and at the earliest reasonable opportunity may lend credibility to the complainant's account, provided it is free from inducement or coercion. This principle underscores the importance of spontaneity and sincerity in post-offence disclosures, especially in cases where corroborative evidence may be limited.

2. Section 269 of the Criminal Procedure and Evidence Act permits a conviction based on the testimony of a single competent and credible witness, except in cases of perjury, treason, or where another enactment requires additional evidence. While this provision confirms that corroboration is not a legal requirement in most criminal cases, it places significant emphasis on the credibility of the sole witness. In circumstances where criminal allegations emerge in the midst of personal disputes between parties, the court must exercise heightened caution. It must interrogate motive, assess consistency, and demand clarity to ensure that the broad discretion afforded by section 269 is not misapplied to the detriment of justice. This principle finds further support in the decision of *State* v *Banana* 2000 (1) ZLR 607 (S), which, when read together with section 269, establishes a framework that empowers courts to convict on minimal evidence, but only where such evidence withstands the scrutiny of credibility and admissibility.

3. The present case is an automatic review following the conviction of the accused of rape, as defined under Section 65(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*]. The accused was sentenced to 20 years' imprisonment. Upon examination of the trial record and the judgment of the learned regional magistrate who dealt with the matter, I am unable to conclude that the State proved its case beyond reasonable doubt.

4. The record of proceedings indicates that the accused and the complainant reside in separate villages in Mudzi. Both are aged 34 years. It is evident that the two parties were well acquainted prior to the emergence of the rape allegations. Unfortunately, the trial magistrate did not fully capture the accused's defence outline in the judgment, which provides important context to the dispute.

5. According to the accused, he and the complainant had entered into a cell phone exchange arrangement, whereby they swapped devices and the complainant paid an additional USD 5.00 as a top-up. Subsequently, the complainant alleged that the phone she received from the accused was faulty. In response, the accused offered to reverse the transaction. However, the complainant informed him that she no longer had his original phone, as it had been taken by her son who resides in Mutoko. The accused then advised her that, under those circumstances, he could not return her phone.

6. Dissatisfied with this outcome, the complainant lodged a police report. When the police approached the accused and he explained the situation, they advised both parties to return each other's phones and left without taking further action. Following this incident, the accused and the complainant's husband began working together in artisanal mining. During the course of their operations, gold was allegedly stolen. In an effort to resolve the matter, the accused and the complainant agreed to consult prophets and traditional healers. However, tensions escalated when the complainant accused the accused of stealing the gold. Her husband did not intervene or reprimand her.

7. As a result of the confrontation, the accused decided to terminate the working relationship. He collected his mining tools, including a shovel, and left them at Katigu's homestead for safekeeping. Katigu is a neighbour of the complainant. Subsequently, the complainant retrieved the accused's shovel from Katigu, informing the accused that she intended to use it for cultivating sweet potato beds. When the accused later met Katigu

and requested the return of his shovel, Katigu approached the complainant to recover it. However, she refused, citing the unresolved dispute over the cell phone transaction. The accused stated that he was unable to retrieve his shovel after Katigu's attempt to recover it proved unsuccessful. The complainant later reported him to the police for rape. The accused maintained that the allegations were entirely fabricated and driven by the earlier disputes concerning the faulty cell phone and the stolen gold ore.

8. According to the complainant's evidence, on 23 January 2023 at approximately 12 noon, the accused visited her homestead to collect his shovel. The complainant informed him that she could not return the shovel due to an unresolved dispute over a cell phone transaction. Upon entering the house, the accused allegedly followed her inside, seized a hoe handle, and struck her on the head, left wrist, and right flank. He then pulled at her skin-tight garment, tearing it in the process. The complainant stated that she screamed, prompting the accused to flee.

9. She proceeded to report the incident to the police, who advised her to return home, stating they would visit her homestead the following day. When she informed them that the accused had threatened to return, they instructed her to contact them should he come back. That night, at around 11pm, the accused allegedly returned. He first went to the bedroom but did not find her, as she was sleeping in the kitchen near a fire. This was so because it was raining and she was in pain. The accused then entered the kitchen, illuminated her with a torch, and she recognised him. He was even wearing the clothes he had come wearing earlier that day. He gagged her with a cloth, tied her hands, removed her skin-tight garment, and raped her. After the assault, he took her cell phone and said he had "fixed her" before leaving.

10. The complainant stated that she was alone with her three-year-old child at the time. Her husband had not slept at home that night, having spent it at a bar near the shops. He returned the following morning, at which point she disclosed the rape to him. He then advised her to report the matter to the police, which she did. The complainant confirmed that there had been a dispute over the cell phone transaction but denied ever accusing the accused of stealing gold during his previous mining partnership with her husband.

11. During cross-examination by the accused, the complainant acknowledged that the cell phone transaction had taken place at her homestead in the presence of her husband. She stated that, after discovering the phone was faulty, she attempted to return it by handing it over to the accused's wife when she visited their home and found the accused absent. According to the complainant, this was the reason she refused to return the accused's shovel. The accused had not returned her cell phone.

12. The accused, however, disputed this claim, asserting that his wife had refused to accept the phone. He explained that his wife was suspicious of the complainant, believing there may have been an affair between her and the accused, particularly because she had not been present when the cell phone deal was made. Despite this, the complainant maintained that she had indeed returned the phone to the accused's wife. From this exchange, it remained unclear whether the phone had actually been returned.

13. Regarding the alleged rape, the complainant explained that she did not call out to her neighbours during the incident because it was late at night, raining, and she feared that no one would come to her aid. She also expressed concern that the accused might harm her if she made noise. She stated that although she has five children, only one, a three-year-old, was with her at the time. Two of the children had gone out, one had gone to the grandmother's place, and she did not account for the fifth child. She further said that her husband had not been home during either the afternoon incident or the alleged rape, as he was at the shops.

14. The complainant's husband confirmed that he received a report of rape from his wife. He stated that he advised her to report the matter to the police, which she did on 24 January. He further testified that he was not at home when the alleged rape occurred, having left on the morning of 23 January 2023 and only returning the following morning. Notably, he did not offer any explanation for his absence, nor was he questioned by the prosecutor about his activities while away, and why he had spent the day and night of 23 January at the shops. He corroborated the existence of a cell phone exchange between his wife and the accused, stating that the transaction took place in his presence. He explained that his wife later discovered the phone she received was faulty. According to him, she informed him that she had returned the accused's phone, but the accused was refusing to return her original phone. He confirmed that they reported the cell phone dispute to the police.

Additionally, the complainant's husband acknowledged that he had previously worked with the accused in artisanal gold mining. However, he claimed to have no knowledge of any issues related to the alleged theft of gold. Importantly, the prosecutor did not question him about the termination of their mining partnership.

15. During cross-examination, the complainant's husband firmly denied any knowledge of the alleged gold dispute. He also stated that he was unaware of any incident in which his wife had insulted the accused. Furthermore, he disputed the accused's claim that the shovel had been left at Katigu's homestead, asserting instead that the accused had left it at his (witness) residence. The accused challenged the witness on the proximity of his brother's homestead, suggesting it was approximately 100 meters away. The complainant's husband disagreed, claiming the distance was between 3 to 4 kilometres.

16. When asked about the number of people residing at his homestead, the complainant's husband stated that five individuals lived there, including two children, who were usually away at work. His account differed from that of his wife, who had testified that two children had gone out, one was staying with the grandmother, and she was with one child at home during the alleged incident. The witness also revealed that on the morning of 24 January 2023, he left the shops in a drunken state, arrived home at around 6 a.m., and found the complainant crying.

17. A medical examination conducted on 26 January 2023 noted the presence of bruises on the complainant's head and one of her wrists, as well as multiple healed hymenal tears. The report concluded that sexual penetration was "very likely." While the bruises may be indicative of some form of physical violence, the significance of the hymenal tears must be carefully considered in context. The complainant was a married woman with children. So, she was sexually active. Therefore, the presence of healed hymenal tears cannot be conclusively attributed to the alleged rape by the accused. The medical findings, in this regard, do not establish a direct causal link between the observed injuries and the specific allegations made against the accused.

18. During the defence case, the accused remained consistent with the account provided in his defence outline, neither adding to nor retracting any part of his version. He was cross-examined by the prosecutor, during which he firmly denied the allegation that he had torn

the complainant's skin-tight garment. This allegation was put to him despite the fact that the prosecution failed to produce the garment as evidence or exhibit. Moreover, the complainant herself was not asked to produce the skin-tight garment, nor was any explanation offered by the prosecution for its non-production.

19. The issue was further complicated by the complainant's testimony, in which she stated that the accused had torn her skin-tight both during the afternoon incident and again during the alleged rape later that night. However, she was not asked to clarify whether it was the same garment torn on both occasions or whether two separate garments were involved. This lack of clarity and the absence of physical evidence significantly weakened the prosecution's claim.

20. The accused also vehemently denied ever assaulting the complainant in any manner. It was put to him that he had taken advantage of the complainant's isolation, given the alleged distance to the nearest homestead, and raped her. He disputed this, asserting that the neighbouring homestead was not far. Additionally, it was suggested to him that he had raped the complainant at night, having premeditated the offence knowing that people would be asleep. The accused rejected this assertion, stating that it was not true as he had no way of knowing that the complainant was alone at her homestead.

21. Norman Sande, a defence witness who had previously worked alongside the complainant's husband, Masimba Mutedza, and the accused in artisanal mining, testified that their mining activities ceased after a bucket containing gold ore was stolen. He stated that the complainant accused the accused of having stolen the ore. Sande also provided context, noting that his former homestead was approximately 80–90 metres from the complainant's residence, and that the accused's elder brother's homestead was similarly situated within that range. He confirmed that he had no knowledge of the rape allegations against the accused.

22. The accused's wife also testified as a defence witness. She stated that on 23 January 2023, the accused was at home both during the day and at around 11pm that night. She recalled that the complainant had visited their home on two separate occasions while the accused was absent, attempting to return his cell phone. However, she declined to accept the phone, explaining that she would inform the accused upon his return so that he could

personally resolve the matter with the complainant. According to her, the complainant concluded the exchange by stating that she intended to have the accused arrested. The accused's wife further testified that she had no knowledge of whether the accused had committed the alleged rape. She said the accused once went to retrieve his shovel but came back without it saying that he had not been given the shovel. However, she did not state the date and time when this happened.

23. In convicting the accused the learned regional magistrate applied the legal principles in *State* v *Banana* 2000 (1) ZLR 607 (S). The magistrate's application of those legal principles to the facts of the case was correct and well-reasoned. Two key requirements must be satisfied for a sexual complaint to be admissible. Voluntariness — the complaint must be made freely, without coercion, inducement, or leading questions. Timeliness — the complaint must be made without undue delay and at the earliest reasonable opportunity to someone the complainant could naturally be expected to confide in.

24. In this case, the magistrate correctly found that both conditions were met. The complainant disclosed the alleged rape to her husband the morning after the incident, immediately upon his return home. This timing satisfies the requirement of prompt reporting. Moreover, the husband was a natural and expected confidant, given the intimate nature of the allegation and the marital relationship. There is no indication that the disclosure was prompted by pressure or suggestive questioning, thereby satisfying the requirement of voluntariness. The magistrate's reliance on this legal framework was appropriate, and the conclusion that the complaint was admissible was sound.

25. While a prompt complaint made soon after an alleged offence may be admissible under the principles laid down in *State* v *Banana* 2000 (1) ZLR 607 (S), it is important to state that such complaint does not, in itself, prove the commission of the offence. Put differently, a prompt complaint is not substantive proof of the offence itself. Its value lies in reinforcing the consistency of the complainant's account and in rebutting suggestions of fabrication or afterthought. In this context, the magistrate's reliance on the timely disclosure was legally sound, as it aligned with established jurisprudence. However, what ultimately proves that an offence was committed is the totality of credible and admissible evidence that satisfies the court beyond reasonable doubt.

26. To establish that the offence was committed, the court must rely on a combination of factors, including: Direct testimony from the complainant that is coherent, consistent, and withstands cross-examination; Medical or forensic evidence that supports the physical elements of the alleged offence (e.g., injuries, signs of trauma, DNA); Witness testimony from third parties that corroborates aspects of the complainant's account-such as emotional state, physical condition, or surrounding circumstances; Behavioural evidence, such as the accused's conduct before and after the alleged offence, which may suggest consciousness of guilt; and documentary or physical exhibits, such as torn clothing, phone records, or surveillance footage, that align with the complainant's version of events. In short, a conviction must rest on evidence that is not only admissible but also persuasive and free from reasonable doubt. A prompt complaint may support the narrative, but it cannot stand alone as proof of guilt.

27. In applying section 269 of the Criminal Procedure and Evidence Act, a court may convict on the sole evidence of a competent and credible witness. However, the credibility and reliability of this witness must be very carefully assessed to see whether it is safe to convict on the basis of her testimony alone.[1] It is necessary for such evidence to be clear and satisfactory in every material respect.[2] In cases where the witness may have a motive to fabricate, or where the circumstances are contentious, such as those involving prior disputes, the court is required to exercise heightened caution. The credibility of such a witness must be rigorously scrutinized because there is a danger of false accusation. The present matter falls squarely within that category. The accused was convicted solely on the evidence of the complainant, despite her having an unresolved dispute with him involving a failed cell phone transaction and a shovel she allegedly refused to return. These circumstances cast a shadow over her motives and raise legitimate concerns about possible fabrication of the rape allegations. Notably, the complainant had previously reported the accused to the police regarding the faulty phone. When the police intervened, they merely instructed both parties to return each other's phones and left, leaving the dispute unresolved. It was only after this unresolved conflict that the rape allegations emerged.

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[1] Prof G Feltoe *Magistrates Handbook for Criminal Cases*, 20 August 2021 page 283.
[2] *S v Zimbowora* 1992 (1) ZLR 41 (S).

28. This context lends credence to the accused's defence that the allegations may have been fabricated as an act of retaliation. In my considered view, the learned regional magistrate failed to engage with this aspect of the defence with sufficient depth or analytical rigour in her judgment. Having carefully reviewed the judgment of the learned regional magistrate and the full record of proceedings, I am not satisfied that the complainant's testimony meets the standard of credibility required in criminal trials. Discrepancies that do not go to the root of the matter are not necessarily fatal to the prosecution's case.[3] However, where there is a series of inconsistencies, omissions, and unexplained elements, their cumulative effect may significantly undermine the reliability of a single witness's account. Such irregularities when taken together, may cast serious doubt on whether the evidence meets the threshold of proof beyond reasonable doubt required in criminal proceedings. That is the scenario in this matter. The specific issues are outlined below.

29. The complainant's account of the events leading to the alleged rape was both contradictory and implausible. She claimed that the accused assaulted her in the afternoon, striking her with a hoe handle and tearing her clothing - the skin tight and that she subsequently went to the police to report the incident. However, she did not inform her husband, who she said was at the shops, and no effort was made to clarify the distance to the shops or why she failed to contact or send for him, neither before going to the police or upon her return. This omission is particularly troubling given her assertion that the accused had threatened to return and that she feared for her safety. Moreover, she did not explain why, despite this alleged threat, she chose to sleep alone that night with only a three-year-old child, further undermining the credibility of her account. To make matters worse, the doors were not even locked and no explanation was given for it. The absence of any meaningful explanation for these decisions raises serious doubts about the reliability of her version of events.

30. The complainant's assertion that the accused arrived at her homestead at approximately 11 p.m., first entered the bedroom and, upon not finding her there, proceeded to the kitchen where she was sleeping raises several critical questions. The kitchen is a separate structure from the bedroom, which prompts inquiry into how she could have known the accused initially went to the bedroom before locating her. This detail suggests either

[3] *S v Nduna & Anor* 2003 (1) ZLR 440 (H).

knowledge of his movements or an assumption that was never substantiated. However, she was never asked to explain how she knew that the accused first went to the bedroom before coming for her in the kitchen. Furthermore, the fact that both the bedroom and kitchen doors were apparently left unlocked is troubling, especially given her earlier claim that the accused had threatened to return. One would reasonably expect heightened caution under such circumstances.

31. In light of the alleged threats, it is particularly perplexing that the complainant chose to sleep alone with only a three-year-old child. A reasonable response would have been to phone or follow her husband to the shops, request that he returns home, or seek alternative shelter, especially after having just reported the assault or attempted rape to the police. Her decision to remain at home, without taking any apparent steps to ensure her safety or secure the premises, undermines the credibility of her account and raises doubts about the plausibility of the accused knowing she would be alone. These unanswered questions weaken the prosecution's narrative and cast doubt on the reliability of the complainant's version of events, particularly in relation to the accused's alleged intent and the complainant's claimed vulnerability at the time of the incident.

32. Equally concerning is the ambiguity surrounding the husband's whereabouts during the critical period in question. The complainant stated that he had slept at the shops, a notably unusual arrangement for a married man with a family, yet no explanation was provided to clarify this deviation from expected domestic norms. Neither the complainant nor her husband was questioned about the reasons for his absence from the afternoon through to the following morning, nor was any context offered to assess whether this was a routine occurrence or an exceptional event. This unexplained absence is not a trivial detail. It directly impacts the credibility of the prosecution's assertion that the accused knew the complainant would be alone that night. In cases where premeditation is alleged, it is essential for the court to be satisfied that the accused had prior knowledge of the complainant's isolation. The failure to interrogate this aspect leaves a significant gap in the evidence of the prosecution and undermines the reliability of its narrative.

33. The complainant's account regarding the whereabouts of her children was both vague and inconsistent. While she stated that she had five children, she only accounted for four: two had "gone out," one was at the grandmother's residence, and one—a three-year-old was

with her. The fifth child was not mentioned, and the details provided for those who had gone out were imprecise. This lack of clarity undermines her assertion of being alone and vulnerable, and casts doubt on whether the accused could reasonably have known she was isolated. Her husband's testimony further complicated the matter, indicating that two of the children were usually at work but failing to specify the location of the remaining children. The State made no effort to reconcile these discrepancies through its witnesses, nor did the magistrate address this critical issue in her judgment. Given that the complainant was a married woman with five children, it was essential for the court to be satisfied that she was indeed alone with only a three-year-old at the time of the alleged incident. The reasons for this claimed isolation and its veracity required thorough examination.

34. Additionally, the complainant alleged that her skin-tight garment was torn during the course of the alleged rape. However, the State did not provide any explanation for the non-production of this garment as physical evidence. Compounding the issue, the complainant stated that the accused had torn her skin-tight clothing on two separate occasions: once in the afternoon and again later that night at approximately 11 p.m. She did not clarify whether these incidents involved the same garment or two distinct items of clothing. This ambiguity was never addressed by the prosecution, nor was she questioned by the court to provide further detail. Crucially, no inquiry was made into what became of the torn garment(s), whether they were discarded, retained, or submitted to the police during investigations.

35. The magistrate, in her judgment, made no reference to this glaring omission. In cases involving allegations of sexual violence, physical evidence such as torn clothing can play a pivotal role in corroborating the complainant's version of events. The absence of such evidence, particularly when its existence is explicitly claimed, without any attempt to explain or account for its non-production, significantly undermines the credibility of the complainant's testimony. It raises legitimate concerns about whether the garment was ever damaged as alleged, and whether the events unfolded in the manner described. Moreover, the complainant's husband, who received the rape report the following morning, did not mention observing any torn clothes.

36. The complainant's account of her response during the alleged rape contains significant contradictions. In her evidence-in-chief, she stated that the accused gagged her. Yet she also claimed she did not scream because her neighbours were far away and she feared the accused would harm her if she made noise. These explanations are mutually exclusive. If she was gagged, she could not have screamed regardless of her fear or proximity to others. The court did not even make an attempt to reconcile this contradiction in its judgment.

37. The complainant did not specify the nature of the report she allegedly made to the police that afternoon. It remains unclear whether she reported an assault, an attempted rape, or another form of misconduct on the part of the accused. According to her testimony, the police instructed her to return home and assured her that officers would attend to the matter the following day. No explanation was provided for this passive and delayed response by the police, particularly in light of her claim that the accused had threatened to return to her homestead. Such inaction appears reckless and inconsistent with basic principles of victim protection and diligence, especially in cases involving threats of sexual violence.

38. Further, the absence of police testimony about the afternoon incident undermined the credibility of the complainant's account. This is a case where the officers who received the report should have been called to testify. Their evidence would have been critical in verifying whether a report was indeed made; the nature of the report made; the nature of the injuries the complainant had, if any; whether the complainant brought any torn clothes and how the complainant presented herself. What compounds the case is that the prosecution did not charge the accused with attempted rape or assault, or any other crime despite the complainant's detailed account of the afternoon events. This omission suggests either that no report was made to the police or that the State lacked confidence in that report. Taken together, these failures by the prosecution left significant gaps in the evidence of the State. These deficiencies hindered a full and fair assessment of the complainant's credibility and contributed to a weakened State case.

39. Taken collectively, these factors significantly undermine the credibility of the complainant's evidence. The court ought to have approached her testimony with greater scrutiny and required corroborative support before arriving at a finding of guilt. In the

specific circumstances of this case, it is reasonable to conclude that the court failed to adequately consider whether the complainant had any motive to fabricate the allegations, particularly in light of the admitted and unresolved disputes involving a malfunctioning cell phone and the accused's shovel. These issues formed the backdrop to a deteriorating relationship between the complainant and the accused. According to the accused, the complainant had gone on to accuse him of stealing gold during a mining partnership with her husband, a claim that was corroborated by their other business partner, although denied by the complainant's husband. This history of conflict and accusation raises legitimate concerns about the complainant's motives and should have been carefully examined by the court in assessing the reliability of her testimony.

40. In the context of this case, the possibility of retaliatory conduct by the complainant warranted careful judicial scrutiny. The sequence of events marked by unresolved disputes over a faulty cell phone and a shovel raises legitimate concerns about whether the rape allegation may have been motivated by frustration or a desire to punish the accused. Despite this, the court failed to interrogate the complainant's motives or assess whether the timing and circumstances of the report suggested an ulterior purpose. It also did not meaningfully engage with the accused's defence that the allegations were fabricated in retaliation.

41. In criminal proceedings, the liberty of the accused is at stake. Therefore, the credibility of the complainant must be evaluated in light of all relevant circumstances, including any potential motive to mislead. The court's failure to consider this dimension of the case represents a significant oversight and undermines the fairness of its analysis. A balanced and thorough evaluation would have required the court to examine whether the complainant had any reason to falsely implicate the accused and whether the surrounding disputes may have influenced her actions. In the absence of such consideration, the conviction rests on an incomplete and potentially flawed foundation.

42. The trial court erred in concluding that certain facts were "common cause." The magistrate stated:

> "It is common cause that the accused person went to the complainant's house on the day in question intending to collect his shovel. It was established that the complainant refused to hand over the accused person's property citing that he should return the money she had paid

> for a malfunctioning phone purchased from the accused person. It is also not in dispute that a misunderstanding arose thereafter. It is also not in dispute that the accused person left the complainant's homestead soon after the misunderstanding."

This conclusion is not supported by the record. At no point during the trial did the accused admit to visiting the complainant's homestead on 23 January 2023. Neither the court nor the prosecution posed any specific question to confirm his presence there on that date.

43. In his defence outline, which he adopted as his evidence-in-chief, the accused stated:

> "I did not manage to take my shovel from the complainant after Katigu had failed to take it from her. She later reported me for rape because of the cell phones we exchanged and her accusing me of stealing the gold."

The accused, who was unrepresented, was not guided by the court to address the critical date of 23 January 2023, the date on which the State alleged both the assault or attempted rape in the afternoon and the rape during the night. Although he provided background on the dispute between himself and the complainant, he was never directed to speak specifically to the events of that day. Even during cross-examination, the prosecutor failed to ask whether the accused had been to the complainant's homestead on 23 January or what had transpired on that day. Instead, it was merely put to him that he had intended to rape the complainant when he went to her home, to which he responded that he did not know about it. It was therefore incorrect for the learned regional magistrate to conclude that it was "common cause" that the accused had gone to the complainant's homestead on 23 January 2023. A proper analysis of the evidence was required to establish whether the accused had, in fact, visited the complainant's home on the day in question.

44. The magistrate's conclusion that it was "established" that the accused approached the complainant at her homestead on the 23rd of January 2023, demanding his shovel is not supported by the trial record. This claim was made solely by the complainant and was never confirmed through direct questioning of the accused. At no point during the proceedings was the accused asked when or how many times he had gone to the complainant's homestead to retrieve the shovel. In his defence outline, he stated:

> "I did not manage to take my shovel from the complainant after Katigu had failed to take it from her."

This statement, left unexplored during trial, was interpreted by the court to mean that the accused had said he had never visited the complainant's home to retrieve his shovel, an interpretation that is both speculative and flawed. The statement is inherently ambiguous and open to multiple interpretations. It could imply that the accused attempted to retrieve the shovel himself but was unsuccessful, or that he made no further effort after Katigu's failed attempt. It might also suggest he was deterred by the potential for confrontation or had simply resigned himself to the loss. By failing to clarify this ambiguity, the court relied on inference rather than evidence, which unfairly influenced its assessment of the accused's credibility and made a finding that he had lied that he had never been to the complainant's homestead to retrieve his shovel.

45. A further error arose in the magistrate's treatment of the testimony given by the accused's wife, which was flawed in reasoning. The court concluded that she had placed the accused at the complainant's homestead, thereby disposing of his *alibi*. However, this conclusion was not supported by the evidence. The accused's wife recounted events related to the cell phone dispute, including the complainant's visits to their home and the accused's stated intention to retrieve his shovel. She also testified that the complainant had come to their home on two occasions in the absence of the accused, attempting to return a cell phone, and that the accused later informed her he had failed to recover the shovel. Crucially, she did not specify the date or time when these events occurred. Neither the prosecution nor the court sought clarification regarding when the accused left home to collect the shovel, when he returned, or whether any of these events took place on 23 January 2023, the date of the alleged rape. The magistrate simply assumed that the events occurred on that date, despite the absence of any evidentiary basis for such a conclusion. To make matters worse it was never established how many times the accused had gone to the complainant's place to demand his shovel. Neither the accused nor the complainant was asked this specific question.

46. The magistrate further stated:

> "His wife stated that the accused person was with her all night. In light of the evidence before the court this cannot possibly be true. The credibility of the complainant was unquestionable. She remained consistent in her testimony even during cross-examination by the accused person."

However, this conclusion is speculative and unsupported by the evidentiary record. The magistrate erroneously assumed that the accused's conversation with his wife regarding the shovel took place on the night of 23 January 2023 and coincided with the alleged rape at 11 p.m., despite the absence of any concrete evidence to that effect. In fact, the accused's wife explicitly testified that the accused was at home on 23 January and was asleep at 11 p.m. The magistrate failed to reconcile this clear statement with her own finding that the accused's wife had placed him at the complainant's homestead. No analysis was offered to justify the rejection of the wife's testimony or to explain why her account of 23 January 2023 was deemed unreliable.

47. The complainant's testimony contained inconsistencies, gaps and unanswered questions, as demonstrated above, yet it was accepted wholesale as credible. In criminal proceedings, especially those involving serious allegations like rape, the court must carefully assess all testimony and avoid drawing conclusions based on assumptions. The accused's wife was a defence witness whose evidence, if properly analysed, supported the accused's claim that he was at home at the time of the alleged offence. The magistrate's failure to engage with this evidence in a balanced and rigorous manner compromised her judgment. Even if one accepts that the accused told his wife he intended to collect his shovel on 23 January, it is implausible that this occurred at 11 p.m., the time of the alleged rape. If anything, such a visit would have occurred earlier in the day, potentially relating to the noon incident.

48. In convicting the accused, the magistrate relied on the medical report, stating:

> "The medical report before the court corroborates the complainant's testimony as bruises were noted on the complainant's body. It was noted that penetration was likely."

However, this conclusion is problematic and lacks evidentiary support. The complainant, a married woman with five children, had clearly engaged in prior sexual activity and was likely still sexually active. The hymenal tears noted in the medical report were described as healed, indicating they were not recent and could not be definitively linked to the alleged rape which had happened three days before the medical examination. Moreover, the complainant failed to clarify which injuries, if any, were sustained during the afternoon incident and which were allegedly inflicted during the later encounter that night. She also claimed that the accused tied her hands and mouth, yet was never asked to

specify what items were used or what became of them. Clearly, the State did not link the injuries on the forehead and the wrist observed by the doctor to the alleged offence. The medical report cannot be said to offer meaningful corroboration. The court's reliance on the medical report, without rigorous analysis or contextual inquiry, undermines the court's finding. A medical report should not be accepted by the court with an unquestioning mind unless it clearly and conclusively supports the evidence of the complainant.[4]

49. In convicting the accused, the learned regional magistrate criticized him for offering only a bare denial of the offence. It must be emphasized that the accused bears no burden to prove his innocence. He is entitled to remain silent and not to testify or be compelled to give self-incriminating evidence.[5] The State carries the full responsibility to establish guilt beyond reasonable doubt even if the accused chooses not to utter a single word in his defence. In this case, the prosecution's case was riddled with unanswered questions. One is left to wonder whether the complainant was genuinely raped by the accused or whether the allegations were fabricated as retaliation over an unresolved cell phone dispute. Notably, the complainant had previously reported the accused to the police regarding the faulty phone, but the officers merely advised both parties to return each other's phones and took no further action. It is common cause that, thereafter, the parties were not able to resolve the matter between themselves.

50. While it is possible that the accused committed the offence, it is equally plausible that the complainant fabricated the allegations in an attempt to "fix" him. It is conceivable that the accused confronted the complainant at noon on 23 January 2023 and that an altercation occurred, but he may not have returned later that night to commit the alleged rape. Alternatively, he may have gone back and committed the offence. The case presents a genuine 50:50 scenario. Both possibilities carry weight, and nothing can be ruled out with certainty. In such circumstances, the magistrate ought to have approached the matter with a more balanced and analytical mindset. A deeper and more critical examination of the complainant's account was warranted, particularly in light of the contentious background and timing of the allegations. In cases of this nature, corroborative evidence is not merely helpful; it is indispensable.

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[4] *S v Zaranyika & Ors* 1995 (1) ZLR 270 (H).
[5] S 70 (1)(i) of the Constitution of Zimbabwe.

51. The accused's defence was not inherently false. On the contrary, it was plausible and deserved proper judicial consideration. The court's failure to assess it thoroughly, and its reliance on assumptions and untested inferences, renders the conviction unsafe. In sum, the complainant's evidentiary gaps, the non-production of key physical evidence, and the absence of police testimony all point to a prosecution case that was inadequately presented. In a matter as grave as rape, where the liberty of the accused is at stake, the court must demand a higher standard of proof and a more rigorous evidentiary foundation. The failure to do so in this case undermines the reliability of the verdict and renders the conviction unsafe.

52. From the judgment of the learned regional magistrate and its surrounding context, I make some pertinent observations regarding criminal charges that arise in the midst of personal disputes between parties. These observations are critical to ensuring fairness, and safeguarding against wrongful convictions. Where criminal charges, especially serious ones like rape, arise against a backdrop of unresolved personal disputes (e.g., over property, money, or business dealings), the court must actively consider whether the complainant has a motive to fabricate the allegations. Failure to do so risks overlooking retaliatory or vindictive conduct that could undermine the credibility of the prosecution's case.

53. The credibility of a complainant must be assessed not in isolation, but in light of the surrounding circumstances. Inconsistencies, omissions, and contradictions in the complainant's account, especially when linked to prior disputes, should prompt deeper judicial inquiry rather than being dismissed or ignored. The court must give fair and reasoned consideration to the accused's version of events, particularly when it is plausible and supported by defence witnesses. Dismissing such evidence without proper analysis, or relying on assumptions, violates the accused's right to a fair trial which is provided for in s 69(1) of the Constitution of Zimbabwe.

54. Section 269 of the Criminal Procedure and Evidence Act allows a court to convict on the single evidence of a competent and credible witness, except in cases of perjury, treason, or where another statute requires corroboration. Credibility must be rigorously tested. The court must not treat the mere presence of a single witness as sufficient unless that

witness's credibility has been thoroughly examined. In cases where the witness may have a motive to lie, the court should demand a higher threshold of reliability. There is need for heightened judicial vigilance. Section 269 must be applied with sensitivity to context, and courts must take deliberate steps to ensure that justice is not compromised by untested assumptions, and overlooked motives. The decision to convict based on single-witness testimony must be accompanied by a clear and reasoned explanation of why the court found that witness credible, especially in light of any potential motive.

55. Vague or ambiguous statements, especially those made by unrepresented accused persons must be clarified through judicial questioning. The court has a duty to ensure that critical facts are properly explored and clarified. The court must not infer facts as "common cause" unless they are explicitly admitted or clearly established through evidence. Assumptions about dates, times, or conduct, especially when not directly addressed can lead to flawed conclusions. Defence witnesses, including spouses or colleagues, must be evaluated on the basis of what they actually said, not on assumptions or speculative interpretations. Their testimony should be reconciled with the broader narrative, not dismissed without analysis.

56. In *casu* the magistrate failed to analyse the impact of the dispute over the faulty cell phone on the credibility of the complainant's rape allegation and this is a significant omission. Given the background of unresolved tensions between the parties, including the complainant's frustration over the phone and the shovel, the possibility of retaliatory conduct was not only plausible but required careful judicial engagement. This was a person who had tried without success to have the accused arrested over the failed cell phone deal. Yet, the court did not explain why, despite this context, it was satisfied that the complainant had not fabricated the rape allegation. The absence of any reasoning on how the court reconciled the existence of the dispute with its finding of credibility on the part of the complainant undermines the verdict of the court.

57. In light of the foregoing, it cannot be said that the guilt of the accused was proved beyond reasonable doubt. He must therefore be given the benefit of the doubt, for it is better that the crime of a guilty person goes unpunished than that an innocent person be condemned. The law must protect the innocent even at the cost of acquitting the guilty. This is not a failure of justice, but a reaffirmation of one of its most enduring principles: It is better

that ten guilty persons go free than that one innocent person be convicted. This maxim reflects the presumption of innocence and the high standard of proof required before depriving any individual of liberty.

58. Accordingly, it is ordered that: -

(i) The conviction of the accused in this matter is quashed.
(ii) The accused's sentence of 20 years' imprisonment is set aside.
(iii) A warrant of liberation is hereby issued for the accused's immediate release from prison.

MUREMBA J: ……

MAWADZE DJP ……..